

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

KENNETH MEEKS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE STEPHEN SHEPPARD, Tax No. 945001, SERGEANT JOSEPH LODATO, Tax No. 948487, POLICE OFFICER MICHAEL REILLY, Tax No. 959123, POLICE OFFICER ROBINSON MARMOLEJOS, Tax No. 963632, POLICE OFFICER MOHAMMED AHMED, Tax No. 965648 POLICE OFFICER LUZ RIVERA, Tax No. 963719, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Defendants.

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 5, 2024

Yours, etc.

David M Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE STEPHEN SHEPPARD, Tax No. 945001, 90th Precinct Detective Squad,
211 Union Ave, Brooklyn, NY 11211
SERGEANT JOSEPH LODATO, Tax No. 948487, Crime Control Strategies
POLICE OFFICER MICHAEL REILLY, Tax No. 959123, 90th Precinct, 211 Union Ave,
Brooklyn, NY 11211
POLICE OFFICER ROBINSON MARMOLEJOS, Tax No. 963632, 90th Precinct, 211
Union Ave, Brooklyn, NY 11211
POLICE OFFICER MOHAMMED AHMED, Tax No. 965648, 90th Precinct, 211 Union
Ave, Brooklyn, NY 11211
POLICE OFFICER LUZ RIVERA, Tax No. 963719, 90th Precinct, 211 Union Ave,
Brooklyn, NY 11211

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X

KENNETH MEEKS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE STEPHEN
SHEPPARD, Tax No. 945001, SERGEANT JOSEPH
LODATO, Tax No. 948487, POLICE OFFICER
MICHAEL REILLY, Tax No. 959123, POLICE OFFICER
ROBINSON MARMOLEJOS, Tax No. 963632, POLICE
OFFICER MOHAMMED AHMED, Tax No. 965648
POLICE OFFICER LUZ RIVERA, Tax No. 963719, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),**JURY TRIAL DEMANDED**Defendants.

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Plaintiff KENNETH MEEKS, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on February 5, 2021, at approximately 8:00 pm he was lawfully present inside of the shelter where he lived, located at 89 Porter Avenue, Brooklyn, New York 11237 at which time defendants entered the shelter and unlawfully stopped, questioned, frisked all of the shelter's occupants including plaintiff, and allegedly determined whether any of the shelter's occupants had outstanding warrants for their arrest. The officers did not recover any illegal drugs, weapons, or contraband from plaintiff, nor did plaintiff have any open warrants for his arrest. The officers claimed they were arresting plaintiff for a bench warrant issued for plaintiff in 1984 that was closed on October 23, 1984. Thereafter, the defendant officers unlawfully handcuffed plaintiff and falsely arrested and imprisoned him without probable cause based upon the erroneously allegation that there was an outstanding warrant for plaintiff's arrest from the 1980s. In fact, at no time relevant herein were there any outstanding warrants for plaintiff's arrest and the officers lacked an objective factual basis to reasonably conclude there was an active warrant for plaintiff's arrest. In fact, plaintiff was on Parole at the time of the underlying incident and the State conducted numerous warrant searches for Mr. Meeks prior to February 5, 2021, all of which reported that plaintiff had

no outstanding warrants for his arrest from the 1980s or otherwise. Defendants transported plaintiff against his will to the 90th Precinct whereat he was unlawfully searched and detained in a holding cell for many hours. On February 6, 2021, at approximately 11:30 am, defendants transported plaintiff to the vicinity of Kings County Central Booking at which time plaintiff was transferred into the custody of the NYC Department of Corrections. At no time relevant herein did plaintiff appear before a judge or receive due process regarding the alleged active warrant for his arrest. Instead, the unlawful detention of plaintiff continued and DOC employees transported plaintiff to Riker's Island where he was unlawfully detained and denied the right to due process until February 16, 2021, at 10:03 pm, at which time plaintiff was released from DOC custody, without any explanation for why he had been detained for so long or why he was suddenly released from custody without any explanation regarding any alleged active warrant or other basis to detain him. At no time relevant herein while plaintiff was in New York City DOC custody did DOC possess a date when plaintiff was expected to be released or appear in Court. Rather, DOC unlawfully detained plaintiff without due process and DOC officials intended to detain him indefinitely even though they did not possess an expected release date for plaintiff, a date when plaintiff was supposed to appear in Court, or another event that would result in generating a release date for plaintiff. Legally, plaintiff should have received due process and appeared before a judge regarding an alleged active warrant within 48 hours of being detained, but plaintiff never saw a judge or received due process to address whether he was lawfully being detained on an active warrant. After plaintiff was released from custody defendant Detective Stephen Sheppard was contacted by plaintiff's Parole Officer to determine why plaintiff was arrested and detained on Riker's Island for an extended period of time. Defendant Sheppard confirmed that there were not any open warrants for plaintiff's arrest. Defendant Sheppard was unable to provide any explanation for why plaintiff was arrested on February 5, 2021, why the arrest was not entered into the NYPD's computer system, or why plaintiff was sent to Riker's Island without seeing a judge. In fact, the defendant officers lacked probable cause to arrest plaintiff, and they denied plaintiff due process by sending him to Riker's Island without seeing a judge or receiving any due process. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KENNETH MEEKS is a resident of the state of New York.
3. Defendant DETECTIVE STEPHEN SHEPPARD, Tax No. 945001, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE STEPHEN SHEPPARD, Tax No. 945001, was at all times relevant herein, assigned to the 90th Precinct Detective Squad.

5. Defendant DETECTIVE STEPHEN SHEPPARD, Tax No. 945001, is being sued in his individual and official capacity.

6. Defendant SERGEANT JOSEPH LODATO, Tax No. 948487, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT JOSEPH LODATO, Tax No. 948487, was at all times relevant herein, assigned to the 90th Precinct and is presently assigned to Crime Control Strategies.

8. Defendant SERGEANT JOSEPH LODATO, Tax No. 948487, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER MICHAEL REILLY, Tax No. 959123, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER MICHAEL REILLY, Tax No. 959123, was at all times relevant herein, assigned to the 90th Precinct.

11. Defendant POLICE OFFICER MICHAEL REILLY, Tax No. 959123, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER ROBINSON MARMOLEJOS, Tax No. 963632, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER ROBINSON MARMOLEJOS, Tax No. 963632, was at all times relevant herein, assigned to the 90th Precinct.

14. Defendant POLICE OFFICER ROBINSON MARMOLEJOS, Tax No. 963632, is being sued in her individual and official capacity.

15. Defendant POLICE OFFICER MOHAMMED AHMED, Tax No. 965648, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER MOHAMMED AHMED, Tax No. 965648, was at all times relevant herein, assigned to the 90th Precinct.

17. Defendant POLICE OFFICER MOHAMMED AHMED, Tax No. 965648, is being sued in her individual and official capacity.

18. Defendant POLICE OFFICER LUZ RIVERA, Tax No. 963719, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER LUZ RIVERA, Tax No. 963719, was at all times relevant herein, assigned to the 90th Precinct.

20. Defendant POLICE OFFICER LUZ RIVERA, Tax No. 963719, is being sued in her individual and official capacity

21. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and a department of corrections, which acts as its agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers and correction officers as said risks attach to the public consumers of the services provided by the New York City Police Department and the New York City Department of Corrections.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. Plaintiff alleges that on February 5, 2021, at approximately 8:00 pm he was lawfully present inside of the shelter where he lived, located at 89 Porter Avenue, Brooklyn, New York 11237 at which time defendants entered the shelter and unlawfully stopped, questioned, frisked all of the shelter's occupants including plaintiff.

28. Defendants entered plaintiff's bedroom and unlawfully frisked, searched, and questioned plaintiff, without any legal basis to detain or search him.

29. The defendant officers claimed that they were allegedly determining whether any of the shelter's occupants had outstanding warrants for their arrest.

30. The defendant officers did not recover any illegal drugs, weapons, or contraband from plaintiff, nor did plaintiff have any open warrants for his arrest.

31. The defendant officers claimed they were arresting plaintiff for a bench warrant issued for plaintiff in 1984 that was closed on October 23, 1984.

32. Plaintiff advised the defendant officers that he was on Parole, and he would have never been released on Parole if there was an outstanding warrant for his arrest, but the defendants ignored plaintiff.

33. Thereafter, the defendant officers unlawfully handcuffed plaintiff and falsely arrested and imprisoned him without probable cause or legal justification, based upon defendants' erroneously allegation that there was an outstanding warrant for plaintiff's arrest from the 1980s.

34. In fact, at no time relevant herein were there any outstanding warrants for plaintiff's arrest and the defendant officers lacked an objective factual basis to reasonably conclude there was an active warrant for plaintiff's arrest.

35. In fact, plaintiff was on Parole at the time of the underlying incident and the State conducted numerous warrant searches for plaintiff prior to February 5, 2021, all of which reported that plaintiff had no outstanding warrants for his arrest from the 1980s or otherwise.

36. Defendants transported plaintiff against his will to the 90th Precinct whereat he was unlawfully searched and detained in a holding cell for many hours.

37. On February 6, 2021, at approximately 11:30 am, defendants transported plaintiff to the vicinity of Kings County Central Booking at which time plaintiff was transferred into the custody of the NYC Department of Corrections.

38. At no time relevant herein did plaintiff appear before a judge or receive due process regarding the alleged active warrant for his arrest.

39. Instead, the unlawful detention of plaintiff continued and DO employees transported plaintiff to Riker's Island where he was unlawfully detained and denied the right to due process until February 16, 2021, at 10:03 pm, at which time plaintiff was released from DOC custody, without any explanation for why he had been detained for so long or why he was suddenly released from custody without any explanation regarding any alleged active warrant or other basis to detain him.

40. Plaintiff was required to undergo intrusive strip searches while he was detained on Riker's Island.

41. Plaintiff is diabetic and takes insulin and other medication to treat his diabetes and he was not given the proper medications while he was detained at Riker's Island, causing him to become sick the entire time he was detained at Riker's Island.

42. Plaintiff was attacked by other prisoners on Riker's Island two times while he was unlawfully detained, including being punched in the head.

43. Plaintiff made repeated complaints to DOC personnel about the fact that he did not have a release date, or a date to appear before a judge and none of the DOC employees were able to explain to plaintiff why he was incarcerated or when he would be released.

44. Plaintiff contacted an attorney he knew and upon information and belief the attorney arranged for plaintiff to be released from custody after he was forced to live in deplorable conditions on Riker's Island for approximately two weeks.

45. At no time relevant herein while plaintiff was in New York City DOC custody did DOC possess a date when plaintiff was expected to be released or appear in Court.

46. Rather, DOC unlawfully detained plaintiff without due process and DOC officials intended to detain him indefinitely even though they did not possess an expected release date for plaintiff, a date when plaintiff was supposed to appear in Court, or another event that would result in generating a release date for plaintiff.

47. Legally, plaintiff should have received due process and appeared before a judge regarding an alleged active warrant within 48 hours of being detained, but plaintiff never saw a judge or received due process to address whether he was lawfully being detained on an active warrant.

48. After plaintiff was released from custody defendant Detective Stephen Sheppard was contacted by plaintiff's Parole Officer to determine why plaintiff was arrested and detained on Riker's Island for an extended period of time.

49. Defendant Sheppard confirmed that there were not any open warrants for plaintiff's arrest.

50. Defendant Sheppard was unable to provide any explanation for why plaintiff was arrested on February 5, 2021, why the arrest was not entered into the NYPD's computer system, or why plaintiff was sent to Riker's Island without seeing a judge.

51. In fact, the defendant officers lacked probable cause to arrest plaintiff, and they denied plaintiff due process by sending him to Riker's Island without seeing a judge or receiving any due process.

52. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United

States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

53. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

54. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess objective facts that established probable cause to believe plaintiff committed a crime or violated the law.

55. The money that was unlawfully seized from plaintiff was never returned to him because the defendants classified it as money that would be permanently seized for forfeiture.

56. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

57. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

58. Defendants admit that they did not recover any illegal drugs, weapons, or contraband from plaintiff's person.

59. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

60. Although defendants failed to recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control, and lacked probable cause to believe plaintiff committed a crime or violated the law in any manner, the defendants unlawfully handcuffed and falsely arrested plaintiff.

61. The defendant officers unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

62. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

63. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

64. Plaintiff also lost approximately 3 weeks of income while he was unlawfully detained and when he was released from custody.

65. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

66. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

67. Defendant Detective Sheppard is listed on the “Adverse Credibility List” maintained by the District Attorney’ Office because he is an officer with credibility issues.

68. Additionally, Detective Sheppard has had numerous complaints filed against him by members of the public, several of which have been substantiated by the NYPD.

69. However, the NYPD has not disciplined Detective Sheppard in a manner that would deter him from violating the Constitutional Rights of members of the public moving forward.

70. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

71. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

72. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff’s injuries because defendants knew that there would

not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

73. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

74. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

75. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

76. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

78. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

83. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

85. Defendants lacked probable cause to search plaintiff.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 88 with the same force and effect as if fully set forth herein.

90. Defendants, individually and collectively, detained plaintiff without permitting him to appear before a judge or receive any due process regarding why he was detained.

91. Plaintiff was unlawfully detained for approximately 2 weeks without appearing before a judge or receiving any due process regarding his detention.

92. In detaining plaintiff without permitting him to appear before a judge, defendants violated plaintiff's constitutional right to due process under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

93. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Failure to Intervene

95. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

97. Defendants failed to intervene to prevent the unlawful conduct described herein.

98. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Department of Corrections, and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. Plaintiff was unlawfully searched, frisked, falsely arrested and denied the right to due process without an objective factual legal basis to seize and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

102. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

103. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

104. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

105. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this

unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

106. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

107. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

108. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

109. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

110. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

111. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

112. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff KENNETH MEEKS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 5, 2024

By: David M Hazan

DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 5, 2024

David M Hazan

DAVID M. HAZAN